

LEASE AGREEMENT

THIS LEASE, dated May 1, 2025 or sooner, if mutually agreeable, by and between SPARTAN MEDICAL FACILITY, L.P., a Pennsylvania Limited Partnership, located at 100 Stoops Drive, Monongahela, Pennsylvania 15063, (Herein Called "Lessor"), and

AEP ORTHOPEDICS
(Herein called "Lessee")

WITNESSETH THAT:

The Lessor hereby leases to the Lessee and the Lessee hereby hires from the Lessor, at the rental and subject to the terms, conditions and covenants herein set forth, approximately 3,295 square feet of space known and described as No. 310/320 on the top floor of a building erected by Lessor whose address is 100 Stoops Drive, Monongahela, Pennsylvania 15063.

TO HAVE AND TO HOLD for a period of ten (10) years commencing on the 1st day of May, 2025 and ending on April 30, 2035, for a yearly rental of \$69,195.00 in equal monthly installments of \$5,766.25 for the years One through Six, lawful money of the United States of America, at the office of the Lessor in that building, or at such other place as the said Lessor may in writing, from time to time, direct. The yearly rental for years Six through Ten is \$72,490.00 in equal monthly installments of \$6,040.83 lawful money of the United States of America. The first installment is due and payable on May 1, 2025 and each succeeding installment to be due and payable on or before the first day of each month thereafter during the term hereof, until the total rental is paid in full.

Renovation costs for Suite 310/320 are \$140,000.00. This shall be paid over ten (10) years in equal monthly installments of \$1,167.00 per month. This construction amount includes running all electrical and computer cables for the office and X-Ray, flooring, paint, countertops and all other design components in the estimate and design, which were submitted and agreed upon. To be specific, the office IT component work/wiring and 480 watts electrical wiring for the new XMR X-ray unit is included in that price. Hickman Electric will work closely with XMR on specs. Hickman will supply the power source and run the lines. Hickman will not participate in

the installation of the XMR unit and connections, that will be XMR's responsibility. Hickman Electric will ensure that the wiring and wattage is available and ready to be powered.

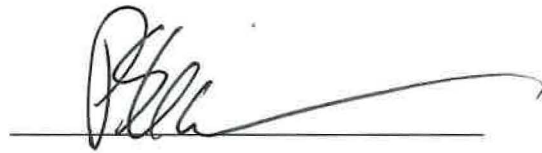
Tenant shall have the right to terminate the Lease, with or without cause, which termination may be effective on any date after the last day of the sixtieth (60th) month of the term of the Lease, provided that Tenant provides Landlord advance written notice of its intention to terminate the Lease at least three (3) months prior to the effective date of such termination.

WITNESS WHEREOF, the parties hereto set their hands and seals, as of the day and year first above written.

LESSOR:

ATTEST:

Spartan Medical Facility, L.P.



(SEAL)

LESSEE:

AEP Orthopedics

ATTEST:



(SEAL)

DATED: MAR 4, 2025

LESSOR AND LESSEE MUTUALLY COVENANT AND AGREE AS FOLLOWS:

1. Lessee shall pay the fixed rental provided for therein at the times and in the manner aforesaid.
2. Lessee agrees that the fixed rental provided for herein may be adjusted by the sole discretion of Lessor upon renewal pursuant to Paragraph 11 of this lease.
3. Lessee will use and occupy said leased premises for professional offices and for no other purposes and said premises will not be used or occupied by anyone other than Lessee.
4. Lessee shall also pay as additional rent when due, all expenses of occupying and operating the demised premises, not otherwise expressly stated herein to be expenses of Lessor, including the following:
 - (a) Lessee's pro rata share of "Increased fire insurance premiums" and "Increased property taxes".If Lessee fails to pay said additional rent in full when due, Lessor may do so for Lessee's account, charge Lessee's account therefore, and recover said amount by adding the amount thereof to the fixed rent due hereunder, and thereafter treat the same in all respects as a part of such fixed rent.
5. Each such installment of fixed rent and all sums payable as additional rent, not paid when due, shall bear interest from the date due at the rate of ten (10%) percent per annum.

5.(a) The term "Increased property taxes, 2003", as used herein, shall mean all real estate tax increases made after 2003, caused by an increase in the municipal assessment of the Medical facility's property valuation above the amount computed for 2003, or above millage rate in effect for 2003, which during the term of this lease, are assessed against, become a lien upon or become payable in

respect of the building, improvements thereto, and the land on which the same is erected, or any tax measured by the income derived from said property.

The amount of Lessee's pro rata share of increased property taxes shall be a sum which bears the same ratio to the total amount of such increased property taxes that the total number of square feet of rentable area in the demised premises bears to the total number of square feet of rentable areas in the building.

- 5.(b) The term "Increased fire insurance premiums", as used herein, shall an all fire and extended coverage insurance premium increases during the term hereof with respect to casualty insurance covering the building carried by Lessor, to the extent that such increases are caused by the nature of Lessee's use of occupancy of the premises. The amount of Lessee's pro rata share of the increased fire insurance premiums shall be a sum which bears the same ratio to the total amount of such increased operation and maintenance costs that the total number of square feet of rentable area in the demised premises bears to the total number of square feet of rentable area in the building.
6. Lessee shall not make any alteration, additions or improvements with respect to the demised premises without Lessor's written consent. Plumbing improvements installed by Lessee may be removed at the end of the term if the premises are restored to their condition at the start of the term.
7. Neither this Lease nor the term hereby demised shall be assigned or transferred, nor mortgaged or pledged, by Lessee, his successors and assigns, nor shall Lessee sublet the whole or any part of the demised premises without, in each case, the prior written consent of Lessor being first had and obtained. No such assignment, transfer or subletting, whether or not the prior written consent of Lessor is required thereto, shall in any event have the effect of releasing Lessee from the performance of any of the covenants and agreements herein contained. This covenant not to assign or transfer this Lease shall apply also to any involuntary transfer by operation,
8. (a) Lessee shall give Lessor prompt notice of any injury or damage to the demised premises by fire or other casualty or defects in the water pipes, electric wiring or in the heating or other apparatus in the demised premises.

(b) Lessor shall not be liable for any loss or damage to any property or person at any time in the demised premises, or in any other part of the building, by reason of theft, or by action of the elements, or arising from fire, wind, explosion, water, rain, snow, steam, gases, or electricity, or other casualty, no matter from what source the same may come, nor shall Lessor be liable to Lessee or to any other person for loss or damage resulting from any failure or inadequacy of equipment installed at any time in or about the Medical facility. Lessor shall not be liable to Lessee for any damage by reason of inconvenience, annoyance or injury to Lessee's business, arising from the repairing of the demised premises or the building, or any equipment therein, if such repairing is done pursuant to the terms hereof.

9. Lessor shall have the right to enter and to grant licenses to its agents and servants to enter, at any reasonable time, the demised premises to examine

the same, run electric wires, or to clean, decorate or to make alterations and repairs, or for any purpose which Lessor may deem necessary for the proper operation maintenance of the building, and also to exhibit the premises to respective tenants during the four months prior to the expiration of the

Lease. Except in the case of emergency repairs, Lessor, upon written request of Lessee, shall use its best efforts to confine such entrance upon the demised premises to hours other than Lessee's normal business hours, but Lessee covenants to pay as additional rent the amount by which Lessor's costs are increased by reason of confining its entry to hours other than Lessee's normal business hours, including, without limitation, increased costs due to overtime pay, selection of different employees and contractors and increased overhead. Upon the vacation of said premises at any time prior to the termination of this Lease, Lessor shall have the right to enter said premises for the purpose of decorating or making alterations as well as for the purposes aforesaid, but such entering shall in no way operate as an abatement of said rent.

10. The Lessee shall faithfully observe and comply with the rules and regulations annexed hereto and with such other and further reasonable rules and regulations which Lessor hereafter, from time to time, may make. Lessor shall not be responsible to Lessee for the non-performance by any other Lessee of the Medical facility of any of said rules and regulations or any other covenant. The Lessee agrees that it will, in its sole cost and expense, promptly fulfill and comply with all laws, ordinances, regulation and requirements of the city, county, state, and federal governments and any and all departments hereof having jurisdiction over the building, and of the National Board of

Fire Underwriters or any other similar body now or hereafter constituted, affecting the Lessee's occupancy of the demised premises or the business conducted therein.

11. This Lease shall be effective for a period of ten (10) years commencing on the 1st day of May, 2025 and ending on April 30, 2035 unless terminated as set forth in Section 12 (default). Lessee shall give Lessor notification of its intent to renew or terminate said lease no later than 90 days prior to the end of lease term. Lessee will, during the period keep, or upon termination of this

Lease for any reason whatsoever, surrender to Lessor without further demand or notice, the demised premises together with all alterations, additions, and improvements, in good order, condition and repair, except of reasonable wear and tear and damage by fire or other casualty, not occurring through Lessee's negligence. Lessee expressly waives to Lessor the benefit of the Landlord and Tenant negligence. Lessee expressly waives to Lessor the benefit of the Landlord and Tenant Act of 1951 or any other Acts of Assembly now in force or hereafter enacted requiring notice to vacate the demised premises at the end of the term and agrees to give up quiet and peaceable possession of the demised premises without notice from Lessor.

12. Each of the following events shall constitute an "Event of Default" or "Default" by Lessee hereunder:

- (a) Failure by Lessee to pay the fixed rent, or any part thereof, when due.
- (b) Failure by Lessee to comply with any of the terms, conditions, or covenants of this Lease.
- (c) An assignment by Lessee for the benefit of creditors.
- (d) The filing of a petition in bankruptcy by or against Lessee.
- (e) The filing of a bill-in-equity or other proceeding for the appointment of a receiver for Lessee.
- (f) The vacation or desertion of the leased premises by Lessee during the term of the Lease.

(g) The violation by the Lessee, or by any agents, servants, employees, or business visitors of the Lessee, or any of the rules and regulations of the Lessor contained in the Addendum hereto, which is incorporated herewith by reference, or the violation of such other further reasonable rules and regulations that the Lessor shall promulgate, as authorized under Paragraph
17 of the Addendum.

(h) The issuance of an execution against Lessee.

(i) The removal, attempt to remove, or manifestation of an intent to remove Lessee's goods or property from or out of the demised premises other than in the ordinary or usual course of business by Lessee, without first having paid Lessor all fixed and additional rent provided for herein for the entire term hereof.

13. Upon default by Lessee, without prior demand or notice, Lessor may exercise any of the following remedies, either alone or in conjunction with any other remedies provided herein or at law or in equity:

(a) Lessor may, at his option, declare a forfeiture of this lease by Lessee and terminate the same forthwith, in which event the unpaid fixed and additional rental for the balance of the entire term hereof, together with all other amounts owed Lessor by Lessee hereunder, shall automatically become the liquidated damages due Lessor from Lessee on account of such default by
Lessee.

(b) Enter upon the demised premises, break open locked doors, if necessary, to effect entrance, without liability to action for prosecution or damages therefor, seize or distraint upon all property upon the premises, which property Lessee hereby grants, bargains and sells to Lessor as security for Lessee's obligations hereunder, and without further notice to Lessee, sell the same and apply the proceeds to any and all sums due from Lessee to Lessor as fixed or additional rent as well as to all costs, expenses, commissions, and other charges including, but not limited to, attorneys' fees of fifteen (15%) percent of the fixed rent due, or to liquidated damages provided for herein, as the case may be.

(c) Follow, for a period of ninety (90) days, any property removed from the demised premises and distraint upon and sell the same under the same terms and conditions and

with the same application of funds as provided in Subparagraph (a) herein above, with respect to the distraint upon the premises.

(d) Lease the demised premises, any part thereof, or the demised premises in conjunction with any other property of Lessor, to any persons or organizations whom Lessor may, in its absolute discretion, choose for any period, Lessor may select whether the same be more, less or the same as the balance of the term of this Lease, and Lessee shall remain liable to Lessor for any loss of rent for the balance of the term hereof, as well as for all costs, expenses, commissions, and other charges herein provided for.

(e) For value received and forthwith on every default by Lessee hereby empowers any attorney of any court of record within the United States or elsewhere to appear for the Lessee and with or without declaration filed confess judgment against Lessee and with or without declaration filed confess judgment against Lessee and in favor of Lessor, its successors and assigns as of any term for the sums due by reason of said default, with costs of suit, attorney's commission of fifteen (15%) percent for collection and release of all errors, and issue Fieri Facias or other writs of execution thereon for said amount with release of all errors and without stay-of-execution, and inquisition and extension upon any levy upon real estate is hereby waived, and condemnation of any present or future exemption law is also expressly waived by Lessee; and further, in case of default by Lessee, the said Lessee, at the option of the Lessor, also authorizes and empowers any such attorney, either in addition to or without such judgment for the amount due according to the terms of this lease, to appear for said Lessee and confess judgment forthwith against Lessee and in favor of Lessor, its successors and assigns, in an amicable action of ejectment for the premises above-described, with all the conditions, fees, releases, waivers of stay-of-execution and exemption to accompany said confession of judgment in ejectment as are set forth in said confession for said sum due; and authorizes the entry of such amicable action, confession of judgment therein, and the immediate issuance of a Writ of Possession, with clause of court; and Lessor may, without notice, enter and expel Lessee from the premises and also any person holding under him and in each case this Lease authority herein above granted shall furthermore not be exhausted by one exercise thereof, but may be exercised from time to time as often as any default by Lessee shall occur.

14. (a) Lessee waives to Lessor the benefit of all laws now or hereafter in force in this Commonwealth or elsewhere exempting property from liability for rent or debt,

expressly waiving the Act of Assembly entitled "An Act for the Relief of the Poor", approved April 10, 1928 and its several supplements; also Act No. 20, approved April, 1951, entitled: "The Landlord and Tenant Act of 1951", Lessee further waives to Lessor all benefits of the said Landlord and Tenant Act of 1951.

(b) No right or remedy herein expressly conferred upon or reserved to Lessor is intended to be exclusive of any other right or remedy, and each and every right and remedy shall be cumulative and in addition to any other right or remedy given hereunder or now or hereafter existing at law or in equity or by statute. The failure of Lessor to insist in any one or more instances upon the strict performance by Lessee of any of the covenants of this Lease or to exercise any option herein contained shall not be construed as a waiver or a relinquishment for the future of any such covenant or option. The receipt by Lessor of rent or additional rent with the knowledge of a breach of any covenant or agreement hereof shall be not deemed a waiver of such breach, and no waiver by Lessor of any provision of the Lease shall be deemed to have been made unless expressed in writing and signed by Lessor or its duly authorized agent. This lease constitutes the whole contract between the parties, and shall be altered, changed or varied in any manner whatsoever except by writing signed by Lessor and Lessee or their duly-authorized agents.

15. In any term or provision of this Lease, or the application thereof to any person or circumstance, shall to any extent be invalid or unenforceable, the remainder of this Lease, or the application of such term or provision to persons or circumstances other than those as to which it is invalid or unenforceable, shall not be affected thereby, and each term and provision of this Lease shall be valid and enforceable to the fullest extent permitted by law.

16. Lessee agrees to indemnify and save harmless Lessor against any and all claims, including mechanics liens, by or on behalf of any person or persons, firm or firms, corporation or corporations, arising from the conduct or management of or from any work or thing whatsoever done or contracted for by Lessee in or about the demised premises, and will further indemnify and save Lessor harmless from and against any lawfully determined liability

arising from any breach or default on the part of the Lessee to be performed, pursuant to the terms of this lease, or arising from any breach or default on the part of Lessee to be performed, pursuant to the terms of this Lease, or arising from any act or negligence of Lessee or any of its agents, contractors, servants, employees or licensee or invites, or

arising from any accident, injury or damage whatsoever caused to any person, firm or corporation occurring during the term of this lease in or about the demised premises, and from and against all costs, counsel fees, expenses and liabilities incurred in or about any such claim or action or proceeding brought thereon; and in care of any action or proceeding be brought against Lessor by reason of any such claim, Lessee, upon notice from Lessor, covenants to resist or defend, at Lessee's expense, such action or proceeding by counsel reasonable satisfactory to Lessor, Lessee covenants and agrees to pay and to indemnify Lessor against all legal costs and charges, including reasonable counsel fees, lawfully and reasonable incurred in obtaining possession of the demised premises after default of Lessee or upon expiration or earlier termination of the term of this Lease or in enforcing any covenant or agreement of Lessee herein contained.

17. This lease, at the option of any mortgage of the demised premises, is subject to all mortgages which may now or hereafter affect such real property of which the demised premises forms a part, and to all renewals, modifications, conditions, replacements and extensions thereof. This clause shall be selfoperative and no further instrument of subordination shall be required by any mortgagee. In confirmation of such subordination, Lessee shall execute promptly any certificate that Lessor may request. Lessee hereby constitutes and appoints Lessor the Lessee's attorney-in-fact, to execute any such certificate or certificates for and on behalf of Lessee.
18. It is further covenanted and agreed by and between the parties hereto that the covenants and agreements herein contained shall bind any inure to the benefit of the Lessor, its successors and assigns, and shall also bind and inure to the benefit of the Lessee, and provided any required consent to any assignment or transfer of this Lease by Lessee shall be obtained as herein above set forth, the successors and assigns of Lessee, Where Lessee may be more than one person, the covenants and agreements herein contained shall be binding upon said persons jointly and severally.